

26STCV13792 26STCV13792

County: los-angeles

Division: Civil Law and Motion

Department: 510

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Case Number: 26STCV13792 Hearing Date: September 18, 2026 Dept: 510

No. 13 - Gabriel Escobar v. Sai

Long Beach B, Inc., et al.

Plaintiff Gabriel Escobar's Motion for Leave to File First Amended Complaint

Plaintiff Gabriel

Escobar moves for leave to file his first amended complaint to add a request for damages under his Consumer Legal Remedies Act claim and add Wells Fargo Bank National Association as a Defendant.

Code of Civil Procedure section 473(a)(1) provides, "The court may, in furtherance of justice, and on any terms as may be proper, allow a party to amend any pleading." Courts exercise their discretion "liberally to permit amendment," and "[t]he policy favoring amendment is so strong that it is a rare case in which denial of leave to amend can be justified." (Howard v. County of San Diego (2010) 184 Cal.App.4th 1422, 1428.) A motion for leave to amend will normally be granted unless (a) the party seeking to amend has delayed bringing the proposed amendment; and (b) the delay in seeking leave to amend will cause prejudice to an opposing party. (Hirsa v. Superior Court (1981) 118 Cal.App.3d 486, 490.)

Plaintiff filed his initial complaint in February 2026. The parties are still at the pleading stage and trial has not been set. Defendants filed no opposition identifying any delay in amendment or resulting prejudice. The Court will permit Plaintiff to file the first amended complaint.

Disposition

Plaintiff Gabriel Escobar's motion for leave to file a first amended complaint is granted. Plaintiff is ordered to file the proposed first amended complaint included as Exhibit 2 in Plaintiff's Compendium of Exhibits.